

7 ICRC Relations with Bern

Part I – Losing the Moral Compass

Nor does the ICRC's insistence upon its entire separateness from the Swiss Federal Government convince sophisticated observers...

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It is clearly not surprising that the ICRC now endorses Dunantist values as a neutral, independent, impartial, humanitarian actor (NIIHA). The organization is the oldest of this type of actor, one that has the confidence of many contemporary governments, international organizations, and even some armed nonstate groups. Some of its Swiss traits, and hence organizational culture, may make it less than beloved and less easy to deal with, but its status and reputation have remained generally high for recent decades. Until the COVID-19 pandemic of 2020 forced some temporary financial retrenchment, the ICRC found donors to fund its annual budget which is now pushing almost US\$3 billion. Then in 2023, in the context of galloping inflation, tightening monetary policy, and increased military spending, there was a severe shortfall in contributions for ICRC planned activities. This is discussed later.

Historically, however, the ICRC manifested muddled thinking about NIIHA values in its own decision making. The theory was better than the practice. With the benefit of historical research, we can now see that this was the case continuing into the 1930s even before matters came to a head in the 1940s. Even in modern times, some ICRC leaders have been more careful about these Dunantist norms, or optics about these norms, than others. There was a comparable muddle involving the independence of Amnesty International and British governments, with lessons that could benefit all RC actors. Naturally enough, the Swiss leaders of the ICRC are not the only ones who let nationalism and social biases corrupt their commitment to cosmopolitan standards like Dunantist principles in humanitarian affairs.

I Early ICRC Practice of NIIHA Principles

We have already seen that Dunant, Moynier, and the other founding fathers of the ICRC always saw their humanitarian project as private and nongovernmental, even if working with national authorities. This independence from governments was then immediately violated by Moynier, who joined with General Dufour in serving on the Swiss governmental delegation at the 1864 diplomatic conference that produced the first Geneva Convention for victims of war. It was one thing to draft the prospective treaty. That could be done by a fully independent Geneva Committee. It was another thing to put oneself under instructions from Swiss national authorities in Bern by joining the governmental delegation.

This muddled thinking about independence from, but cooperation with, national governing authorities was then repeated by the ICRC for a long time. Many ICRC leaders served simultaneously in Swiss public positions at federal, cantonal, and city levels. A number of Committee members agreed to be Swiss ambassadors or other foreign policy officials. When the ICRC set up a relief agency to deal with the Balkan war of 1913, a Swiss consular official headed that RC agency. Max Huber served as legal advisor to the Swiss foreign ministry much of the time that he was ICRC president (1928–1944). He accepted to be the Swiss governmental representative to the 1932 Disarmament Conference while heading the ICRC. Giuseppe Motta, Swiss foreign minister in 1920–1940, was a member of the ICRC governing board during most of that time. After World War II when C.J. Burckhardt and Paul Ruegger were Swiss Ambassadors, in France and the United Kingdom respectively, they mixed Swiss and ICRC business, discussing the ICRC's future in terms of Swiss national interests.² ICRC examples of lack of appropriate independence from Bern are legion.

When ICRC President Gustave Ador joined the Swiss Federal Council in 1917 in order to resolve a crisis there, eventually becoming Swiss president in 1919, he took an official leave of absence from the ICRC. But he continued to make decisions on behalf of the ICRC, even presiding over some ICRC meetings. Clearly, he mixed the roles of ICRC humanitarian neutrality with Swiss political neutrality.³ When C. J. Burckhardt became Swiss ambassador in Paris in 1945, Max Huber returned as interim ICRC president. As per the source above, however, Burckhardt remained involved in ICRC affairs. An official leave of absence was a pro-forma status that did not necessarily mean distance from participation in key ICRC decisions. What was a Swiss political concern and what was an ICRC humanitarian concern were not always separated.

This was true on many levels during the interwar years of 1919–1939 either because Geneva sought the assistance of Bern, or perhaps more often Bern sought to co-opt or advance the role of Geneva.⁴ But here we concentrate attention on the 1930s and 1940s, and then on the post-1945 era.

It should be noted that the same intertwining of humanitarian and government roles, or worse, was found throughout the RC Movement. At one point the head of the Belgian Red Cross was the Belgian defense minister. At one point the head of the American Red Cross (ARA) was the president of the United States. The top legal counsel for the ARC used to be the US Attorney General. It was only in 1986 that the International Red Cross Movement forbade a state that had accepted the relevant Geneva Convention and the respective National RC Society from being represented by one combined delegation to the International RC Conference.⁵ There seems no record, or personal recall now, of how many times before then a nation manifested one combined delegation to the RC Conference. But there had to be some evident reason, now maybe lost to history, for adopting the 1986 wording.

Many, if not most, National RC Societies had become *de facto* state agencies, with minimal independence. Some might be private and independent in the economic sense of operating from citizen donations, but otherwise they remained quasi-state in nature. Throughout the RC world, the principle of independence from governments was observed mostly by its breach, even as the idea of independence was written into the RC Fundamental Principles.

(There were apparently some occasions on which a National RC Society voted differently from its governmental delegation at the RC Conference, although no one seems to have records on this point. This apparently happened in 1996 on the question of expelling the South African governmental delegation from the Conference because of its apartheid policies.)

One might guess that a kind of unexamined nationalism impeded careful thought much of the time. No one seemed to want to carefully sort out the difference between national citizenship and the NIIHA realm-meaning cosmopolitan RC principles. Maybe it couldn't be done to the satisfaction of all, or maybe the subject required choices that were too difficult – and the preservation of the RC Movement required leaving everything unexamined.

There were plenty of egregious examples of National RC Societies violating NIIHA norms, not at all limited to the German Red Cross in the Nazi era. Other totalitarian states presented the same picture: the National RC Society was incorporated into the structure of a state that

was not known for its humanitarian accomplishments. Totalitarians aside, the basic problem remained widespread. In the Serb region of Bosnia circa 2002, the head of the Bosnian Serb Red Cross (The Red Cross of the Republic of Serbia), an autonomous subunit of the Bosnian Red Cross, was Ljiljana Zelen-Karadzic, wife of the now-convicted war criminal Radovan Karadzic. She was openly supportive of his discriminatory political campaigns, even as he evaded capture until 2008 to stand trial for war crimes, so much so that the ICRC apparently asked for her resignation.

In the previous chapter we discussed the ICRC refusal to exercise withdrawal of recognition from a recognized National RC Society. The Bosnian Serb case comes very close to such a withdrawal, complicated by the complex arrangements in Bosnia and Herzegovina, which apparently the ICRC had facilitated. The ICRC, which never had formally recognized that particular subunit, asked for her to step down on the grounds of driving away supporters – at least if one can believe what was reported by multiple media sources.⁶ (The ICRC declined to clarify that history, it being part of the closed archives at the time of writing.)

As for the ICRC over time, from 1863 through the Second World War, from Moynier to Huber, they and their colleagues in Geneva seemed to often assume that ICRC neutrality and Swiss neutrality, if not the same, were almost the same. This error was compounded by a failure to confront their social biases that undermined the notion of impartiality. In short, lack of proper independence and lack of rigorous self-examination about biases sometimes compromised ICRC claims to neutrality and impartiality. The narrow sociopolitical background of most ICRC officials did not help matters. The record on such conflicting values was, if anything, worse in much of the rest of the RC Movement.

II The 1930s and Mussolini

As noted, the ICRC was started by French-speaking Genevans of Protestant persuasion mostly from the upper classes. These male Christian conservatives with a social conscience, accompanied by skepticism about things on the political left, kept the enterprise going in pretty much the same format from 1863 until the First World War. (The first female was co-opted in 1918.) Family links were strong, with a few prominent families being well represented.⁷ Uncles were replaced by nephews; relatives by marriage were often co-opted as well. The first German speaker was asked to join only in 1923, the first Catholic in the same year. So it was only from the 1920s that the governing board became national rather than strictly Genevan. What did not change, for

the most part, was an unexamined Swiss nationalism and demonstrable conservatism. This led to inroads on the practice of humanitarian independence, neutrality, and impartiality.

We will skip the Spanish civil war where we still do not have much independent research on the ICRC.⁸ Instead we focus on the Italian invasion of Ethiopia (Abyssinia) in 1935–1936 where we have an extremely well-researched source.⁹

Switzerland was an important trading partner with Mussolini's Italy. In particular, the Swiss-Italian region in the southeast of the country was intertwined with Italy not only economically but also culturally. And just as Bern might fear an invasion from the Nazis from the north, so it might fear Italian irredentist claims in the south. The Swiss foreign minister between 1920 and 1940 was Giuseppe Motta, from Ticino. He was well known for his view of Mussolini as a counter to both the Nazis and the Bolsheviks.¹⁰ He was also on the ICRC governing board. His man in Rome, Georges Wagniere, held similar views; he was co-opted onto the Committee in 1936.

President Huber at the helm of the ICRC was close to Motta personally and helped Motta draft the legal approach that allowed Switzerland to soften League of Nations economic sanctions on Italy after it invaded Ethiopia in 1935. Also, Huber had economic connections to firms heavily invested in Italy, firms which greatly profited from military spending in both Italy and Germany.¹¹ Bern, since Switzerland was a member of the League, felt obliged to do something given the vote for sanctions in the League, but did not want to hurt Italy, or itself, too much. ICRC President Huber, legal advisor to the foreign ministry, showed Motta how to do what the latter wanted to do as part of Swiss national interests.

Switzerland had never recognized the Soviet Union from 1917, even after its consolidation of power by about 1922, and still had no diplomatic relations with Moscow in the 1930s. It was only in 1940 that ambassadors were exchanged. Since 1933 Bern had been worried about trends in Germany – in addition to the Soviet Union. It followed that good relations with Mussolini's Italy loomed large in Bern's calculations of national interest.

Given the above, in retrospect it is not completely surprising that the ICRC followed the lines of Swiss foreign policy toward Italy, tilting toward Rome. Geneva was less than neutral and impartial in responding to humanitarian needs in the Italian–Ethiopian war of 1935–1936. There was indeed a broad RC presence in the conflict, with the ICRC working with a number of European RC Societies to provide medical and other assistance. Many RC staff in the field upheld NIIHA principles and even pressured their headquarters to do more, especially in calling out Italian airstrikes on medical facilities, not to mention use of poison gas. The



Photograph 7.1 The ICRC clearly tilted in favor of Mussolini's regime in its brutal invasion of Ethiopia in 1935–1936. It did not protest when Italy attacked facilities marked with the Red Cross, or when Rome resorted to mustard gas to subdue continued Ethiopian resistance. The exact year of this photo is not recorded but is either 1935 or 1936. The ICRC leadership lost its moral compass in the 1930s and 1940s.

ICRC had publicly protested the use of poison gas in World War I; it did not do so regarding Italy in Ethiopia.

In various other ways the ICRC favored Italy, as Baudendistel conclusively shows. At headquarters in Geneva two views in particular prevailed, both reasonably well documented. First there was racism, with Huber and others, both in Geneva and Bern, believing that Haile Selassie's Ethiopia should not have been recognized and admitted to membership in the League of Nations. There was thus the view that a bit of Italian colonialism might not be a bad thing, assisting the Ethiopians to make a more orderly future. Then there was the view, already mentioned, that the Italian Black Shirts were a useful counterweight to the Nazis and the Soviets. Mussolini played to this view after coming to power in 1922 until he aligned with Hitler in the later 1930s. For Bern and the overlapping ICRC leadership, black was better than brown or red. Mussolini's Black Shirts were preferable to the brown clad Nazi storm troopers and to the red flag of the Bolsheviks.

When the history is closely read, it is undeniable that the ICRC under Huber fell far short of a reasonably sound application of NIIHA norms regarding Mussolini and his brutal policies in Ethiopia. Part of the problem was lack of independence from Bern, not because the ICRC was pressured to conform to Swiss policy, but because the ICRC leadership was too close to Swiss authorities and voluntarily followed the line of Swiss foreign policy. Huber and his colleagues were not inclined to establish a rigorously independent humanitarian policy. They were not inclined toward a firm humanitarian stand in the face of Mussolini's policies.

Part of the problem also stemmed from the social conservatism of the ICRC and its racist demeaning of Africans, maybe as much under Huber as under Moynier earlier. And part of the problem stemmed from how both of these factors coalesced into ICRC support for the reigning version of Swiss national interests – namely, that one should go slow about contesting Italian atrocities in Ethiopia in order to prioritize Swiss larger political interests. Huber failed to distinguish a proper NIIHA stance from his Swiss identity. What was good for Switzerland was assumed to be the right policy for the ICRC as well. Huber might have been a well-recognized jurist, but he was lacking as a clear-minded humanitarian policy maker. And he carried the rest of the ICRC governing board with him.

III Hitler and the Holocaust

By early fall 1942 the ICRC in Geneva was in possession of reliable information from various sources about the Nazi genocide. Nazi genocidal actions had become more systematic after the Wannsee Conference of Nazi leaders in early 1942, and then undeniable on a systematic and large scale by that summer. A mail poll of Committee members indicated support for a draft public statement about this and other humanitarian issues roiling events.

The Swiss government had put Edward de Haller in charge of supervising humanitarian organizations, and the ICRC had made him an honorary member of the Assembly. De Haller was related to others in the Swiss foreign ministry and politically close to still others. When de Haller saw the responses to the mail survey and realized the possibility of an ICRC public statement about humanitarian affairs in the Second World War, including treatment of detainees, he alerted key figures in Bern. One of these was the Swiss president, Philippe Etter, also a member of the ICRC governing board. Although Etter was usually not one to take part in specific ICRC decisions and activities, he and some others called for an in-person meeting of the governing board to discuss the pending draft public statement, attended the meeting, and spoke against a public

statement.¹² Clearly he became involved in ICRC meetings to head off any public statement that might offend Berlin.

During the years of Nazi rule Swiss authorities, finding themselves surrounded by fascist states and well aware of the power of their brutal neighbor to the north, had engaged in policies that tilted toward the Nazis – as did Sweden, which was another leading neutral.¹³ The Swiss version of partial appeasement involved cooperation with the Nazis primarily in matters of banking (helping convert gold, much of it stolen, to convertible currency, *inter alia*) and refugees (helping to identify German Jewish refugees and turning them back to a dark fate). Much of the country more broadly speaking, including the Swiss Red Cross, had been reasonably generous in wanting to receive many Jewish refugees, especially children, from neighboring states.¹⁴ But clearly Swiss official policy represented a kind of appeasement so as not to provoke Berlin unduly. Other small liberal European states such as Belgium and the Netherlands had not fared well under the Nazi boot. Was Hitler likely to invade the small Alpine state that had made preparations for armed neutrality? Why take any chances that Hitler might actually implement invasion plans?

It was true that the Swiss government *per se* did not officially pressure the ICRC to remain silent about the Holocaust and other humanitarian subjects. The Swiss Federal Council, which was the collective executive, and the Swiss Parliament never adopted any stance regarding the ICRC meeting of October 1942. Moreover, a larger perspective showed that during the war the ICRC was not always simply in the pocket of Bern, because there were numerous differences of opinion between Geneva and Bern on this and that subject. While the ICRC had its own activities going, and Switzerland was the Protecting Power for several belligerents, the two Swiss entities sometimes cooperated and sometimes had stiff arguments about who was to do what and who was to pay for what. The ICRC manifested some independence during the war, and Swiss officials officially respected that independence. But only up to a point.¹⁵

In October 1942, the Swiss officials in Bern who were also members of the ICRC governing board all argued against a public statement by the ICRC regarding a shortlist of humanitarian issues including the fate of political detainees. The hidden agenda of appeasement remained officially hidden, as Bern officials argued for more quiet diplomacy, or suggested that a public statement would make no difference and have no impact. In the last analysis the double membership on the ICRC board allowed the governmental members to join with other conservatives in adopting a position that led to much controversy. The draft public statement was not adopted, but that was not the entire story.

Part of the denouement in 1942 was that in lieu of a public statement, the ICRC was supposed to carry out a more vigorous discrete diplomacy

toward Berlin in favor of IHL and victims. But this never transpired. J. C. Burckhardt and other ICRC conservatives never followed up on that agreement. Huber was ill, did not participate in the 1942 meeting, and effectively turned ICRC leadership over to Burckhardt. The latter was not trusted by the British for being too close to certain German leaders in this era.¹⁶ Burckhardt is seen by more than one historian as favoring the German conservatives, but not necessarily the Nazis, as a barrier to an expanding communism. And Swiss nationalism was certainly not absent in his thinking. (All this would fit with how Huber, and Motta, viewed Mussolini as covered above.)

After 1942 the good that was done for Jewish victims of the Nazis by the ICRC was done by local ICRC representatives in peripheral areas, such as Friedrich Born in Budapest. It was not the ICRC in Geneva that authorized the dynamic action in saving many Jews, and the proactive ICRC staff members were not recognized and rewarded by the Geneva headquarters after the war.¹⁷



Photograph 7.2 While the Geneva HQ neither publicly condemned Berlin for its atrocities in the 1930s and 1940s, about which the ICRC had reliable information by 1942, nor developed a dynamic quiet diplomacy in defense of Nazi victims, some individual staff members, such as Friedrich Born in Hungary, successfully helped many Jews escape the Holocaust. This photo is not dated but was taken in either 1944 or 1945.

IV Contested Lessons of History about the 1940s

The reigning version of “lessons learned” about the ICRC and the Holocaust stresses the failure to take a public stand in the face of great evil: rather than independently standing for humanitarian principle in publicly opposing the Nazi genocide and other violations of human dignity, and thereby protecting its reputation for the future, the ICRC remained silent under personal pressure from high Swiss officials, which resonated with the ICRC conservatives of that time.¹⁸ In the 1942 debate several members of the Assembly urged, unsuccessfully at the end of the day, a public statement lest the future status of the ICRC be negatively affected.

In April 2015, at a meeting on the Shoah cosponsored by the World Jewish Congress, ICRC President Peter Maurer gave a talk in which the theme of speaking out rather than remaining silent figured prominently. He said, in part:

Over the past seven decades, we have heard innumerable versions of the perverse justifications for the horrors of the Shoah.... Tragically, the leaders of the International Committee of the Red Cross were part of the by-standers who – when confronted with questions about the silence of the institution – defended standard responses to extraordinary circumstances.... In institutional terms, the ICRC also learned some hard lessons. It had failed to protect civilians and most notably the Jews persecuted and murdered by the Nazi regime; it had failed to understand the uniqueness of the inhumanity by responding to the outrageous with standard procedures; it had looked on helplessly and silently, not really trying – certainly not hard enough – to live up to the principle of humanity.... It failed as a humanitarian organization because it had lost its moral compass. This failure has become an intrinsic part of our institutional history.¹⁹

Maurer continued:

Since then, we have chosen to confront our past and to embrace transparency. Our public archives are proof of our acknowledgment of the past and our continued effort to confront uncomfortable truths. The ICRC has also adopted a new policy on confidentiality, explicitly acknowledging that there is a path to condemnation of acts of inhumanity. We have chosen not to let ourselves be cornered by the binary logic of silence vs. denunciation, which inevitably leads to paralysis.

This speech in its entirety is consistent with contemporary ICRC doctrine both about communications²⁰ and about steps to take when confronted with violations of IHL or human dignity.²¹ Maurer, while appearing to take a stand in favor of more public diplomacy, actually was rejecting a simple dichotomy between silence or denunciation and indicating the various steps the ICRC might take short of specific denunciation of a particular authority. His speech, when analyzed carefully,

was actually an endorsement for a varied discreet diplomacy that saw public denunciation as a rare last resort. Later in this book we show that Maurer was almost always in favor of quiet diplomacy rather than public criticism, and he explicitly acknowledged this trait in an interview. Nevertheless, his carefully chosen words could be understood, and probably were, as furthering the notion that the ICRC was once again rejecting the silence of the Assembly in 1942 in the face of Nazi atrocities.

Almost entirely unnoticed, in 2006 the Assembly adopted a statement about the Nazi holocaust.²² This appeared to “come out of the blue,” in the sense that nothing in the ICRC’s external environment compelled more attention to the history of the 1940s. That doctrinal statement of 2006 was consistent with ICRC contemporary policy on communication and response to violations of human dignity, but it projected a different emphasis. One should read the 2006 Assembly statement as saying that the primary problem in 1942 was not remaining silent but not having a sufficiently dynamic quiet diplomacy, and not pursuing that effort even if it had no practical impact. In other words, the ICRC did indeed lose its moral compass in the 1940s (and for that matter in the 1930s regarding both Mussolini and the early Hitler), but primarily because it did not take a firm and courageous stand by way of high-level if discrete overtures to top officials – even if not grounded in IHL, and even if the overtures would have no practical impact.

The 2006 statement acknowledging ICRC failure, even if with reference to the failure in all of Western civilization in the face of the Holocaust, reads in part:

This failure is aggravated by the fact that the ICRC did not do everything in its power to put an end to the persecutions and help the victims. The organization remained a prisoner of its traditional procedures and of the overly narrow legal framework in which it operated. Having abandoned the idea of public condemnation – convinced as it was that this would not change the course of events, fearing that it would jeopardize the activities it was carrying out for other victims, especially prisoners of war, and not wishing to exacerbate Switzerland’s relations with the belligerent States – the ICRC essentially relied on its delegates to make confidential representations to the authorities of the Reich or its satellites. However, these delegates had no access to the corridors of power. Only towards the end of the war did the ICRC’s leaders make high-level representations to certain leaders of the Reich and its satellites.²³

The Assembly statement continues:

Having confined itself to two options – that of the very limited aid operation it was carrying out for the victims of Nazi persecution, with derisory results in regard to the situation of the victims and no impact on the genocide, and that of public condemnation, an ultimate weapon that the ICRC felt it could not

use, the organization was unable – until the last months of the war – to make determined, sustained, high-level diplomatic representations to the leaders of the Reich.... Such approaches should have been attempted, even if it could be doubted that the desired results would be achieved....

Within the Assembly the view was articulated that the various ICRC comments and publications about the Holocaust since the late 1980s did not add up to a consistent ICRC position and had not been widely understood correctly. In this view, the ICRC during World War II was correct for worrying about the effect of a public statement in 1942 on POW matters. The Germans were, more or less, adhering to the 1929 GC on POWs with the Allies (but not with the Soviets who had never ratified that GC), the ICRC was being allowed to act as a neutral intermediary on that subject, there were tensions between the Allies and the Nazis regarding POW affairs, and it was possible that the Nazis might pull out of reciprocal POW arrangements and block various ICRC activities.



Photograph 7.3 ICRC representatives talk to POWs (mainly French) at a German POW camp at Rawa-Ruska, on the border between Poland and Ukraine, 1942. Fear of collapse of these kinds of prison visits was one reason some at the ICRC did not want to press the Nazis very hard about treatment of Jews and other detainees who were not POWs and not legally protected under the 1929 Geneva Convention. It was in 1942 that the Nazis escalated plans for the Final Solution.

In 2006 the Assembly was endorsing the view that the ICRC's big failure in the 1940s was failing to send someone like Burckhardt, with good access to high levels of German officialdom, to press the case about unacceptable violations of human dignity – even if such matters were not then fully covered by IHL. In this view the Nazi policies were so grave that the ICRC should have made that high-level effort even if Geneva believed the *démarche* would do no good. The effort itself would show that the organization had tried every reasonable option and thus had protected its reputation in the future, as well as protecting ongoing POW arrangements. The Assembly seemed to imply in 2006: If dynamic quiet diplomacy failed, and if there were ongoing humanitarian programs, the ICRC would be correct not to publicly denounce specific atrocities. The Assembly statement did recognize the role of Swiss nationalism in ICRC thinking in 1942 by including the polite phrase “not wishing to exacerbate Switzerland's relations with the belligerent States....”

In any event the Assembly, with apparently little debate, approved what had been drafted by a staff member and what President Kellenberger supported. But then apparently it was Kellenberger who decided not to publish the statement in the *Review* or otherwise give it great publicity. It was posted on the ICRC website but not featured prominently. Probably the ICRC did not want to stir up any new controversies by calling attention to its past mistakes. This official statement about the ICRC and the Holocaust, and for now the last document on the subject, has languished in the shadows ever since. Some staff persons did not know it was in the public domain.²⁴

Maurer in 2015 was not really disagreeing with the 2006 statement but rather was presenting ICRC doctrine on public denunciation of atrocity in a way that was tailored to his audience – talking about publicity and transparency but closing with an emphasis on other steps besides full silence or explicit denunciation. ICRC doctrine as well as practice continues to emphasize confidential dialogue, with specific public denunciation of war crimes or gross violations of human rights as an exceptional last resort. Even then, specific public denunciation has to be seen as in the interest of victims, which in practice it almost never is at the Geneva headquarters.

V Lessons Applied in Rwanda

Rwanda in spring 1994 is illustrative about what the ICRC really learned from 1942, and what ICRC doctrine on communication and response to atrocities really means in contemporary times. In the face of atrocities by militant Hutus primarily against Tutsi but a few others (and with some

Tutsi massacres of a smaller number of Hutus), resulting in the estimated deaths of around 800,000 Tutsis, the ICRC stayed in the country to do what good it could while making calculated public statements. It operated on the edge of danger to its personnel there.

According to Philippe Gaillard, who was head of the ICRC delegation in Rwanda at the time of the genocide:

The Rwandan genocide was so well covered by the media, especially by the western media, that everyone could follow it on TV, radio or in newspapers every day. One could say that it was transmitted live, at least live enough to inform the governments and public about what was really happening there.... The ICRC contributed to this media coverage and reporting like it maybe never had done in its almost 130 years of existence at that time. On 28 April 1994, some three weeks after the beginning of the genocide, the ICRC called on the governments concerned including all members of the Security Council to take all possible measures to put an end to the massacres. The words used – “*systematic carnage*,” “*the extermination of a significant portion of the civilian population*” – left no room for doubt about what was going on.²⁵

So the ICRC was not silent about the Rwanda genocide, but it crafted its language so that (just barely) it could stay in the country in order to run a hospital that continued to function on the basis of impartiality – and was seen as neutral. It made representations to the authorities that resulted in children being spared in some orphanages, or Tutsi adults saved in this or that jurisdiction. It did what it could in terms of some humanitarian good, even as the genocide continued until the victory of the invading and Tutsi-dominated Rwandan Patriotic Front.

Of course, the Rwandan genocide was different from 1942. In 1994 ICRC officials did not have to pay much attention to complicating Swiss national interests and whether some high officials in Bern might object to an ICRC pending decision. Rwanda had no plans to invade the Helvetian Republic.

VI The Same Lesson Regarding Russia in Syria

ICRC relations with Russia in recent years demonstrated how the ICRC deals with atrocities, in keeping with what happened in Rwanda, and with what the Assembly said in its doctrinal statement of 2006. It is all of one piece, with the 1940s in the background. Here we are not talking about genocide but about major war crimes. But ICRC thinking and process remain the same on both matters.

In Syria 2011 to 2021, from the government side, with Russia fighting on the side of the Assad regime from about 2015, there were many attacks on medical facilities and use of chlorine bombs, as well as the

failure to consistently exercise due diligence in distinguishing between civilian and military targets. Human Rights Watch eventually released a highly critical report about Russian–Syrian bombing policies.²⁶ The ICRC, active on the ground mainly in government-controlled areas, protested against inhumane violence in general, but did not call out Moscow by name for its role, directly or indirectly, in war crimes as it supported the Assad government. In government-controlled areas the organization was allowed to deliver some humanitarian relief working with the Syrian Arab Red Crescent. It manifested a few cross-border operations to rebel held areas. It carried out some routine prison visits but not to detainees under interrogation held by the security services. (Recall the analysis of the ICRC and the Syrian civil war at the end of the last chapter.)

The ICRC had a general strategy underway of engagement with various Russian officials for long-term confidence building. Moreover, it, was engaged with Russia and its allies with some limited humanitarian achievements in Eastern Ukraine from 2014, Libya, Nagorno-Karabagh, and probably elsewhere. Geneva had discussions with Foreign Minister Lavrov and other high foreign policy officials which the Geneva headquarters saw in positive terms. In 2021 the Russian Foreign Ministry awarded the F.F. Martens Medal to Peter Maurer representing the ICRC for its humanitarian record, whatever that signified. (Winning the prize could be seen as success for the ICRC strategy of building confidence and good relations, or as a Russian effort to reward the ICRC for keeping silent about, and thus being complicit with, Moscow's controversial policies.)

In any event ICRC policy was to avoid explicitly denouncing Russia for war crimes in Syria especially from Russian air force bombing. The big picture about ICRC programs not only in Syria but also about dealing with Russia across different situations was controlling, and a good example of how the ICRC normally operated, consistent with various doctrinal statements, and consistent with arguably the main lesson learned from the Holocaust. The main focus was said to be on dynamic quiet diplomacy and not explicit public protest, especially if some humanitarian progress was being made somewhere with a particular actor. Public denouncement of specific violations of IHL and/or human dignity, and active prosecution for war crimes, was almost entirely the domain of others. That posture facilitated some pragmatic help for victims – at least sometimes. Doctrine allowed for public specific protest as a last resort, but it was almost never a favored course of action. This was the ICRC general policy followed in the Ukraine war in 2022, discussed in the Epilogue.

There seems no evidence that the evolution of ICRC doctrine and particular decisions about public protest, or the lack thereof, involved Swiss officials in Bern. Rather, ICRC doctrine and policy practice about public protest stemmed from ICRC experience and thinking at the top in Geneva. Such was not the case, of course, in 1942.

VII Further Reflections

After World War II, Huber and Burckhardt wrote a letter to President Truman seeking clemency for the German convicted war criminal Ernst von Weizsacker, who had been secretary of state, or the top civil servant, in the German Foreign Ministry – and later German ambassador to the Vatican. This letter, ill-advised for a humanitarian organization, confirmed the view that ICRC key leaders saw conservative Germans (and Italians), even those complicit in war crimes, as being useful in blocking the advance of communism, which they saw as threatening Switzerland and the rest of the West. For Burckhardt, the letter to Truman culminated a sizable effort on behalf of several Nazi war criminals who had been friendly to Switzerland or who had helped Burckhardt in his extracurricular efforts to mediate a peace with Britain during the war. Huber, never decisive, went along with what was no doubt a Burckhardt initiative.²⁷

In the fall of 1943, the Nazis had taken over Rome from the collapsed Mussolini regime. The Vatican arranged a meeting with Ambassador Weizsacker. The relatively new Pope, Pius XII (Pachelli), had decided to pursue a belated concern of his predecessor, Pius XI (Ratti), and contest the Italian anti-Semitic laws. (The latter had drafted a long statement opposed to Nazi policy toward the Jews which was never published.) The Pope's emissary, Cardinal Maglione, asked Weizsacker to intervene to protect slightly more than 1,000 Jews detained in a nearby building. Weizsacker refused, declining to undermine Hitler's instructions. A couple of days later the Jews were deported to Auschwitz. Only sixteen survived.²⁸

That Huber and Burckhardt would petition Truman on behalf of Weizsacker indicated the nature of the views at the top of the ICRC during the Nazi years. Such views represented a moral low point in the history of the ICRC. Deference to Swiss national interests and calculations about the dangers of communism loomed large.

VIII Universal Humanitarianism and Universal Religion

National RC Societies were not usually paragons of virtue when it came to NIIHA values, and the historian John Hutchinson has written about how the RC Movement had become nationalized and militarized even

before the Second World War.²⁹ But the ICRC, too, has had its own controversial eras as well. Just as it is difficult to keep religion from being nationalized, so is it difficult to avoid the same fate for a cosmopolitan humanitarianism. This was quite evident at ICRC headquarters.

The German Lutheran pastor Dietrich Bonhoeffer famously argued that Christianity was supposed to be a universal religion whose tenets were not supposed to be nationalized or made secondary to national or other secular interests. Christianity, being a universal faith, required tough choices for its believers in resisting popular trends.³⁰ He was killed by the Nazis for his beliefs. Many, if not most, Christian churches – indeed many, if not most, religions – conform to prevailing national sentiment about the priority of national interest and national security.

One way to understand ICRC history is to see it as an evolution toward a rigorous and professional commitment to NIIHA universal norms, trying to improve on its amateurish start complete with fuzzy thinking about things such as Swiss nationalism and deference to the Swiss government. The 1930s and 1940s show the details of why that evolution had not proceeded very far back then.

Just as Moynier never seemed to have engaged in self-evaluation about his support for colonialism and King Leopold's brutal Congo Free State, so Huber and Burckhardt never seemed to have engaged in self-evaluation about their humanitarian failures in the 1930s and 1940s – witness the letter to Truman after the war. If there was private agonizing, Huber seems to have done more of it than Burckhardt.³¹ The Assembly statement in 2006 about the Holocaust wanted to make sure there *was* reflection about 1942 and adjacent years, and that the reflection hit on arguably the right points. Even so, the 2006 ICRC Assembly statement contained only diplomatic language and soft reference to the role of persons in the Swiss government in the defective decisions of the ICRC in 1942.

IX Comparison with Amnesty International, London

Here one might usefully bring in a rough analogy from the history of Amnesty International (AI). The founder of AI, Peter Benenson, was a bit like Henry Dunant: he was a visionary rather than a systematic manager, was very good at promoting a cause with much energy, was outraged by a certain injustice, was a committed religious believer, and became the author of various schemes and visions beyond the one for which he is mainly remembered. But that is not the main point here.³²

Benenson, a British citizen who was based in London and pushing for more attention to political prisoners from 1961, assumed that the British government, especially when Labour was in power, shared his

commitment to human rights and was equally concerned about the fate of political prisoners. And so there developed between Benenson representing AI and British governments various joint maneuvers in, for example, South Africa, Haiti, Southern Rhodesia, and Aden. Some of this cooperation was both under the table and of dubious ethics.³³

It turned out that, whereas Benenson and AI were interested in detained individuals per se, the British government was interested in burnishing its image and other aspects of its national interests as it defined them. The joint convergence on political prisoners was for different reasons, with different objectives. When the bubble of secret dealings eventually burst, Benenson had to resign from AI. The organization decided on rejecting any donations from governments in the future, a policy position which remains today.

This historical comparison between Amnesty in London and the ICRC is not exact, and today the ICRC continues to have close relations with the Swiss government both diplomatically and financially. The last four ICRC presidents, and now the current one, Mme. Mirjana Spoljaric, first had careers as Swiss federal officials (but not all entirely with the Foreign Ministry). But the comparison holds on an important point: At times both the leaders of the early Amnesty in London and of the early ICRC in Geneva assumed that *their* government was different, more ethical, more genuinely committed to human rights or human dignity than other governments, and in the Swiss case more genuinely neutral – and worthy of some deference. And so both AI and the ICRC sometimes fell into the trap of not guarding their independence enough and not keeping a necessary distance from their national political leaders. A shared nationalism, complete with shoddy thinking, was pervasive early on.

X Conclusion

There is much more to be said about ICRC relations with Swiss authorities, and the subject is continued in the next chapter.

Notes

- 1 G. Best, *War and Law Since 1945* (Oxford: Oxford University Press, 1994), p. 376.
- 2 Gerald Steinacher, *Humanitarians at War: The Red Cross in the Shadow of the Holocaust* (Oxford: Oxford University Press, 2017), pp. 104–105. Burckhardt at that time had been ICRC president and Ruegger would be in the future.
- 3 Cédric Cotter, *(S')Aider pour survivre. Action humanitaire et neutralité suisse pendant la Première Guerre mondiale* (Chêne-Bourg: Georg Editeur, 2017), esp. pp. 243–248.

- 4 For an English summary of his book in German, see Thomas Bruckner, "The ICRC and Switzerland 1919–1939: A 'Special Relationship' Examined," *Imperial and Global Forum*, May 28, 2018, <https://imperialglobalexeter.com/2018/05/28/the-icrc-and-switzerland-1919-1939-a-special-relationship-examined/> (accessed November 16, 2022).
- 5 *Handbook of the International Red Cross and Red Crescent Movement* (Geneva: ICRC-Federation, 1986), 14th ed., p. 527.
- 6 BBC News, "Karadzic's Wife Quits Red Cross Post," December 13, 2002, <http://news.bbc.co.uk/2/hi/europe/2571579.stm> (accessed November 17, 2022); Reuters, "World Briefing/Europe: Bosnia: Karadzic's Wife Quits Red Cross Post," December 13, 2002, www.nytimes.com/2002/12/13/world/world-briefing-europe-bosnia-karadzic-s-wife-quits-red-cross-post.html (accessed November 17, 2022); Radio Free Europe and Radio Liberty, "Balkan Report," May 31, 2002, www.rferl.org/a/1341067.html (accessed November 17, 2022); Reuters, "Timeline: Events Leading to Trial of Radovan Karadzic," www.reuters.com/article/us-warcrimes-karadzic-trial/timeline-events-leading-to-trial-of-radovan-karadzic-idUSTRE59M3I720091023 (accessed November 17, 2022).
- 7 Diego Fiscalini, "Des elites au service d'une cause humanitaire: le Comité International de la Croix-Rouge," *Mémoire de license*, University of Geneva, Faculty of Letters, Department of History, 1985. Some say this student account is not entirely accurate, but no one has produced a better study so far.
- 8 The standard account on Spain, promoted by the organization, was by Marcel Junod, *Le Troisième Combattant* (Geneva: ICRC, 1947). Baudendistel, cited later, suggests that Junod was not a completely reliable source concerning both Ethiopia and Spain. The ICRC research historian has produced a short account on Spain: Daniel Palmieri, "Une neutralité, sous influence?: le CICR, Franco, et les victimes," *Revue Suisse d'Histoire*, 59/3 (2009), pp. 279–297.
- 9 The definitive source is Rainer Baudendistel, *Between Bombs and Good Intentions: The Red Cross and the Italo-Ethiopian War, 1935–1936* (New York and Oxford: Berghahn Books, 2006).
- 10 See also "Guiseppe Motta," *The Anthology of Swiss Legal Culture*, www.legalanthology.ch/motta_guiseppe_1871/ (accessed November 17, 2022).
- 11 Yves Sandoz presents a rather positive view of Huber in "Max Huber and the Red Cross," *European Journal of International Law*, 18/1 (2007), pp. 171–197 while noting his controversial corporate connections. See also "Le Comité International de la Croix-Rouge," in *L'Observatoire de l'Action Humanitaire*, no date, www.observatoire-humanitaire.org/en/index.php?page=fiche-ong.php&part=commentaires&chapitre=311&id=84 (accessed November 17, 2022) where one reads the following: "Max Huber was first attacked by the Swiss communist press in July 1936, because his firm's subsidiary in Venetia, the SAVA (Società Alluminio Veneto Anonima), was producing aluminum and trading with the defense industry in Italy as the fascists invaded Ethiopia. From 1929 onwards, Max Huber also directed his father's metallurgical company, Aluisse & Oerlikon, which manufactured weapons for Nazi Germany during World War Two. When conflict broke out in 1939, Max Huber decided to donate his salary to the ICRC, but did not resign from his

- position. Meanwhile, his company's factory in Singen, Germany, violated the Geneva Conventions by using OST (Ostarbeiter) labor provided by deported persons and Soviet prisoners of war captured after 1941."
- 12 Isabelle Voneche Cardia, *Neutralité et engagement. Les relations entre le Comité international de la Croix-Rouge et le gouvernement suisse pendant la Seconde Guerre mondiale* (Lausanne: History Society of Swiss Romand, 2012).
 - 13 A short and journalistic, but accurate, comparison can be found at: Roger Cohen, "The (not so) Neutrals of WWII," *New York Times*, January 26, 1997, www.nytimes.com/1997/01/26/weekinreview/the-not-so-neutrals-of-world-war-ii.html (accessed November 17, 2022).
 - 14 One independent historian summarized the Swiss overall record toward Jewish refugees as "commendable, but not impressive." Yehuda Bauer, *The Holocaust in Historical Perspective* (Canberra: Australian National University Press, 1978), p. 91, <https://openresearch-repository.anu.edu.au/bitstream/1885/114693/2/b12168439.pdf> (accessed November 17, 2022). See further the extensive, official, and more critical Bergier report on Swiss-German relations during the Nazi era, published in 2002, "Independent Commission of Experts: Switzerland-Second World War (ICE)," www.uek.ch/en/index.htm (accessed November 17, 2022).
 - 15 David P. Forsythe, *The Humanitarians: The International Committee of the Red Cross* (Cambridge: Cambridge University Press, 2005).
 - 16 James Crossland, *Britain and the International Committee of the Red Cross, 1939–1945* (Basingstoke: Palgrave Macmillan, 2014).
 - 17 It should be stressed that this is not the place for a detailed review of the ICRC record in World War II, including the Holocaust. That record has been recorded not only by the organization but also by independent scholars such as Jean-Claude Favez, *The Red Cross and the Holocaust* (Cambridge: Cambridge University Press, 1999; the earlier French edition was *Une Mission Impossible?*, Lausanne: Editions Payot, 1988) and Arieh Ben-Tov, *Facing the Holocaust in Budapest: The International Committee of the Red Cross and the Jews in Hungary, 1943–1945* (Boston: Martinus Nijhoff, 1988).
 - 18 Favez, *The Red Cross and the Holocaust*, p. 282, concludes that the ICRC should have spoken out about the Nazi genocide.
 - 19 ICRC, "Remembering the Shoah: The ICRC and the International Community's Efforts in Responding to Genocide," April 2015, www.icrc.org/en/document/remembering-shoah-icrc-and-international-communitys-efforts-responding-genocide-and (accessed November 17, 2022).
 - 20 ICRC, "The ICRC's External Communication Doctrine," May 2, 2016, www.icrc.org/en/document/icrc-external-communication-doctrine (accessed November 17, 2022).
 - 21 ICRC, "Action by the ICRC in the Event of Violations of International Humanitarian Law or of Other Fundamental Rules Protecting Persons in Situations of Violence," no date, <https://library.icrc.org/library/search/notice?noticeNr=20414> (accessed November 17, 2022); and ICRC, "The ICRC's Confidential Approach: Specific Means Employed by the ICRC to Ensure Respect for the Law by State and Non-State Authorities," no date, <https://library.icrc.org/library/search/notice?noticeNr=37714> (accessed November 17, 2022).

- 22 ICRC, "The Nazi Genocide and Other Persecutions," October 25, 2007, www.icrc.org/en/document/wwii-nazi-genocide-and-other-persecutions (accessed November 17, 2022).
- 23 Ibid.
- 24 This doctrinal statement No. 64, posted in 2007, was a slightly different version of a 2002 statement by François Bugnion posted in 2002: "Dialogue with the Past: the ICRC and the Nazi Death Camps," ICRC, November 5, 2002, www.icrc.org/en/doc/resources/documents/misc/6ayg86.htm (accessed November 18, 2022). In his post on the ICRC website, Bugnion, who played a large role in the fashioning of Doctrine 64, writes: "Even more than the absence of public condemnation, it is, in my opinion, the timidity of the confidential representations that weighs most heavily against the ICRC." For a recent exposition of the same theme about dynamic quiet diplomacy, against the same historical background, see Daniel Palmieri, "Savoir et se taire: le Comité International de la Croix-Rouge et la Shoah," *Revue d'Histoire de la Shoah*, 2019/1 (No. 210), pp. 117–129. Palmieri is the senior historian at the ICRC.
- 25 Philippe Gaillard, "Rwanda 1994: '... kill as many people as you want, you cannot kill their memory'." ICRC, March 29, 2004, www.icrc.org/en/doc/resources/documents/misc/5xfncq.htm (accessed November 18, 2022).
- 26 Human Rights Watch, "Syria/Russia: Strategy Targeted Civilian Infrastructure," October 15, 2020, www.hrw.org/news/2020/10/15/syria/russia-strategy-targeted-civilian-infrastructure# (accessed November 18, 2022).
- 27 Steinacher, *Humanitarians at War*, pp. 126–136.
- 28 David I. Kertzer, *The Pope and Mussolini: The Secret History of Pius XI and the Rise of Fascism in Europe* (New York: Random House, 2014), pp. 193–195.
- 29 *Champions of Charity: War and the Rise of the Red Cross* (Boulder: Westview Press, 1996).
- 30 From a multitude of sources on the subject, one can start with Bonhoeffer, *The Costs of Discipleship* (New York: Simon and Schuster, 1959), translated from the original 1937 publication.
- 31 In Favez, *The Red Cross and the Holocaust*, the author closes with a thumbnail sketch of some leading personalities including Huber and Burckhardt. Neither comes off especially well. He shows that neither were careful about the difference between humanitarian neutrality and Swiss political neutrality. Even ICRC President Sommaruga, who as we will see was very keen on ICRC independence, took exception to what Favez said about Huber, as recorded in the final pages of the Favez book. On this matter Favez was right and Sommaruga was overly touchy and defensive about ICRC history.
- 32 Tom Buchanan, *Amnesty International and Human Rights Activism in Postwar Britain, 1945–1977* (Cambridge: Cambridge University Press, 2020).
- 33 See also Kirsten Sellars, "Human Rights and the Colonies: Deceit, Deception, and Discovery," *The Commonwealth Journal of International Affairs*, 93/377, 2004, www.tandfonline.com/doi/full/10.1080/0035853042000300197?scroll=top&needAccess=true (accessed November 18, 2022).